

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: June 9, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
2.	ALARID VS. CAMARILLO 2024-01377164	MOTION TO COMPEL FUTHER RESPONSES TO SPECIAL INTERROGATORIES Plaintiff Dolores Alarid’s Motion to Compel Further Responses to Special Interrogatories, Set One (SPROGS) is MOOT except for sanctions, which are GRANTED. Plaintiff served the subject discovery on 1/30/26. Defendant served non-substantive responses consisting of objections on 3/31/26 after several extensions. As of 4/10/26, on the date this motion was filed, Defendant had not served substantive verified responses. In the opposition filed on 5/27/26, Defendant’s counsel states they had difficulty contacting their client and Defendant served supplemental responses on 4/24/26, after this motion was filed. The parties engaged in additional attempts to meet and confer regarding the supplemental responses and Defendant served further supplement responses on 5/19/26. In reply, Plaintiff does not argue that the supplemental responses remain deficient but maintains the request for sanctions in the amount of \$3,385.00 based on seven hours of counsel’s time at \$475/hour plus the \$60 filing fee. The Court finds this amount was reasonably incurred due to Defendant’s failure to serve substantive responses to discovery after Plaintiff’s counsel provided multiple extensions to respond. Therefore, the request for sanctions is granted, payable within 30 days. (Code Civ. Proc. § 2030.290(c).
3.	HOME OF THE MINISTERING ANGEL VS. SENECA FAMILY MOTION TO EXPUNGE LIS PENDENS OF AGENCIES 2025-01498434	MOTION TO EXPUNGE LIS PENDENS Defendant Seneca Family of Agencies’ Motion to Expunge Lis Pendens is GRANTED; however, the motion is CONTINUED to 8/11/26 at 9:00 a.m., in Dept. C32 for further consideration of Seneca’s fee request. Seneca’s Request for Judicial Notice (RJN) is GRANTED as to Exhibits 2-4. It is DENIED as to Exhibit 1 as it is not relevant to the ruling. <u>Plaintiff’s Allegations</u> Plaintiff filed the operative verified First Amended Complaint (FAC) on 9/15/25. (ROA 19.) In the FAC, Plaintiff alleges it entered into an agreement with Canyon Acres Residential Center (CARC) in or about May 1987 concerning real property commonly known as 233 S. Quintana Drive, Anaheim, CA (Property), “whereby CARC agreed to purchase the Property from Plaintiff for the price of \$760,000.00 subject to a re-purchase agreement allowing Plaintiff to re-purchase the property for a specific price if the Property was to be sold to another party other than Plaintiff.” (FAC ¶¶ 3, 7.) A

Corporation Grant Deed (Deed) conveying title from Plaintiff to CARC was recorded on 5/5/1987. (FAC ¶ 8, Ex. 1.) Seneca holds title to the Property as a successor-in-interest to CARC. (FAC ¶ 3.)

Exhibit B of the Deed provides as follows:

“From the date of recordation of this deed, the property cannot be sold or transferred to another party other than the Home of Ministering Angel, unless The Home of Ministering Angel declines to purchase the property in writing. The sales price to the Home of the Ministering Angel during the next ten (10) years shall be \$760,000.00.” (FAC ¶ 9, Ex. 1 at Ex. B.)

Plaintiff alleges “Seneca has entered into an agreement to sell the property to a third-party for profit entity without first having given notice to Plaintiff of the proposed sale or after having given Plaintiff the opportunity to repurchase the property at the sales price of \$760,000.00, as adjusted for inflation.” (FAC ¶ 19.) Plaintiff seeks “a judicial determination of its right to repurchase the Property and the invalidity of any purported sale or transfer of the Property in contravention of that right.” (FAC ¶ 25.) Plaintiff also alleges it “tendered, or is ready and willing to tender, the sum of \$760,00.00 adjusted for inflation as the purchase price” (FAC ¶ 27.)

Legal Standard

Any party or a non-party having an interest in the property affected by a notice of lis pendens may move for expungement any time after the lis pendens is recorded on several grounds, including the claimant cannot prove the probable validity of the real property claim. (Code Civ. Proc., §§ 405.30, 405.32.) An action has “probable validity” only if “it is more likely than not that the claimant will obtain a judgment against the defendant on the claim.” (Code Civ. Proc., § 405.3.) Where the motion is made on the grounds that the action does not involve a real property claim or the action lacks probable validity, the claimant who filed the lis pendens has the burden of proof. (Code Civ. Proc., §§ 405.1, 405.30, 405.31, 405.32.) If the claimant fails to meet his or her burden, the court must order that the notice be expunged and may not order an undertaking be given as a condition of expunging the notice. (Code Civ. Proc., §§ 405.31, 405.32.)

Merits

Plaintiff recorded a lis pendens against the Property on 7/22/25. (RJN, Ex. 3.) Thus, as the claimant, Plaintiff bears the burden of establishing probable validity of the real property claim.

Seneca argues Plaintiff cannot prove the probable validity of its quiet title claim on several grounds, including the option stated in Exhibit B of the Deed (1) Plaintiff cannot prove ability, or

willingness, to tender payment; (2) violates the Statute of Frauds; and (3) expired by operation of law over 20 years ago.

Tender

To prevail, Plaintiff must prove it is entitled to specific performance. “[I]t is axiomatic that to obtain specific performance, a buyer must prove not only that he was ready, willing and able to perform at the time the contract was entered into but that he continued ready, willing and able to perform at the time suit was filed and during the prosecution of the specific performance action.” (*C. Robert Nattress & Assocs. v. Cidco* (1986) 184 Cal.App.3d 55, 64 [cleaned up]; see also *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891 [a buyer “may not refuse to divulge this specific financial information after putting his ability to purchase the . . . property directly at issue by the allegations in his complaint.”].)

Here, Plaintiff has not presented any evidence ready, willing or able to tender. Seneca, on the other hand, presented evidence that Plaintiff is not. Namely, Plaintiff’s PMQ testified that Plaintiff does not have \$760,000 on deposit in its bank account. (Averett Decl. ¶ 8, Ex. G [Small Dep.], at 73:15-76:16.) When asked if Plaintiff ever tendered, or was now willing to tender, Plaintiff’s PMQ responded: “Never.” (Id. at 71:8-11.) Plaintiff’s counsel refused to allow the PMQ to answer questions about Plaintiff’s ability to pay and Plaintiff has not presented evidence of its ability to pay with its opposition. (Id. at 73:15-76:16.) Thus, Plaintiff has failed to meet its initial burden of proving the probable validity of its claim.

Statute of Frauds

Under the statute of frauds, an agreement for the sale of real property is invalid unless it is in writing signed by the person to be charged. (Civ. Code, § 1624, subd. (a)(5); see also *Woods v. Bradford* (1967) 254 Cal.App.2d 501, 505 [option agreements to purchase real property must satisfy the statute of frauds].) To satisfy the statute of frauds, any “contract for the sale of real property must identify the buyer, the seller, the price, and the property.” (*Sterling v. Taylor* (2007) 40 Cal.4th 757, 772.) “If the writing *includes* the essential terms of the parties’ agreement, there is no bar to the admission of relevant extrinsic evidence to *explain or clarify* those terms.” (Id. at p. 762 [emphasis added].) However, “[b]ecause the memorandum itself must include the essential contractual terms, it is clear that extrinsic evidence cannot supply those required terms.” (Id. at p. 767.)

“Option agreements have generally been held or recognized to be sufficiently definite as to price to justify their enforcement if either a specific price is provided in the agreement or a practicable mode is provided for the court to determine price without any new expression by the parties themselves.” (*Goodwest Rubber Corp. v. Munoz* (1985) 170 Cal.App.3d 919, 921 [holding option agreement

that specified “fair market value” as the purchase price “does not require future agreement of the buyer and seller” and was “a proper substitute for a specific purchase price and will support an action for specific performance.”].)

Here, the option only contains a purchase price for the ten year period after the 1987 recordation date. It does not contain either a purchase price or a practicable mode for determining the price after the ten year period expired in 1998. Therefore, the option is unenforceable.

Plaintiff contends absence of the purchase price does not void the contract; instead, courts use reasonable fair market value to determine the purchase price. This argument fails. To support its contention, Plaintiff cites Civil Code section 1611, which provides: “When a contract does not determine the amount of the consideration, nor the method by which it is to be ascertained, or when it leaves the amount thereof to the discretion of an interested party, the consideration must be so much money as the object of the contract is reasonably worth.” However, the statute of frauds stated in Section 1624 is a more specific statute that qualifies the more general Section 1611. (See Civ. Code, § 3534 [“Particular expressions qualify those which are general.”].) Plaintiff fails to cite any case decided after *Sterling, supra*, that applied Section 1611 to supply the purchase price for a contract for an interest in real property. In addition, Plaintiff’s cited authorities are distinguishable as none concern the elements necessary to satisfy the statute of frauds.

Plaintiff also argues the FAC alleges that the post-ten-year repurchase price is \$760,000 as adjusted for inflation, which is a formulation that is independently ascertainable. This argument fails as well. While the FAC alleges Plaintiff has a right to repurchase the Property after ten years for \$760,000 as adjusted for inflation (see FAC ¶ 19), the option itself is silent as to the sale price after ten years. (FAC, Ex. 1 at Ex. B.) Even if extrinsic evidence were admissible to supply a material term, Plaintiff has not submitted any such evidence. In fact, Seneca submitted evidence showing Plaintiff has no such evidence. For instance, Plaintiff’s PMQ testified there is no document that uses the phrase “as adjusted for inflation.” (Averett Decl., ¶ 8, Ex. G [Small Dep.] at 69:5-8; see also Averett Decl., ¶ 7, Ex. F, at p. 21:27-28 [stating Plaintiff is “unaware of the terms that would be part of the ‘AGREEMENT’ not expressly established by way of a writing.”].)

The option therefore does not satisfy the statute of frauds and is unenforceable. Accordingly, Plaintiff has not met its burden of showing the probable validity of its real property claim.

Marketable Record Title Act

Seneca argues the option expired over 20 years ago pursuant to the Marketable Record Title Act (MRTA) (Civ. Code, § 880.020 et seq.)

Civil Code Section 884.010 provides, in relevant part: “If a recorded instrument creates or gives constructive notice of an option to purchase real property, the option expires of record if no conveyance, contract, or other instrument that gives notice of exercise or extends the option is recorded within the following times: [¶] (a) Six months after the option expires according to its terms. [¶] (b) If the option provides no expiration date, six months after the date the instrument that creates or gives constructive notice of the option is recorded.” (Civ. Code, § 884.010, subds. (a), (b).)

The purpose of the MRTA is “to simplify and facilitate real property title transactions in furtherance of public policy by enabling persons to rely on record title to the extent provided in this title, with respect to the property interests specified in this title, subject only to the limitations expressly provided in this title and notwithstanding any provision or implication to the contrary in any other statute or in the common law. This title shall be liberally construed to effect the legislative purpose.” (Civ. Code, § 880.020, subd. (b).)

Here, the option expired either on 11/6/1987, i.e. six months after the 5/5/1987 recordation date, as stated in the first sentence of the option, or on 11/6/97 at the latest, i.e. six months after expiration of the ten-year term stated in the second sentence of the option.

Plaintiff does not dispute that the MRTA applies to the second sentence. However, Plaintiff contends the MRTA does not apply to the first sentence because it is not an option but a restrictive covenant on the power of alienation.

Plaintiff’s argument fails because “a right of first refusal is a species of option to purchase[.]” (*Smyth v. Berman* (2019) 31 Cal.App.5th 183, 192.) Section 884.010 applies to any “recorded instrument [that] creates or gives constructive notice of an option to purchase real property.” The first sentence of Exhibit B creates such an option since it prevents the sale of the Property to any third party unless Plaintiff “declines to purchase the property in writing”. Therefore, the MRTA applies to the first sentence of Exhibit B. This interpretation furthers the purpose of the MRTA to “simplify and facilitate real property title transactions in furtherance of public policy by enabling persons to rely on record title” (Civ. Code., § 880.020, subd. (b); see also subd. (a)(2) [“Interests in real property and defects in titles created at remote times, whether or not of record, often constitute unreasonable restraints on alienation and marketability of real property”].)

		Thus, Plaintiff has not established the probable validity of its real property claim. Because Plaintiff's real property claim does not have probable validity on three separate grounds, the court need not address Seneca's remaining arguments. The motion is GRANTED. <u>Attorney Fees</u> A prevailing party on a motion to expunge a lis pendens is entitled to recover "reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) Here, Seneca is the prevailing party. Plaintiff has not established substantial justification for opposing the motion or other circumstances making the imposition of fees and costs unjust. Seneca requests attorney fees and costs in the amount of \$159,207.63. (Robinson Decl., ¶¶6-7, Exs. J, K.) Based on the supporting declaration, this amount includes tasks over the past five months, including "factual investigation, preliminary and subsequent legal research, preparation and propounding of written discovery, subsequent enforcement of that discovery (e.g., repeated meet and confer efforts, reviewing multiple iterations of Plaintiff's responses to discovery, preparing and filing ensuing motions to compel), preparing for and taking the deposition of Plaintiff's designated 'person most qualified,' digesting all of the foregoing, along with our drafting, polishing and filing of the actual motion and supporting papers." (Id., ¶¶ 4, 6.) These tasks are not limited to making the motion. Thus, Seneca's attorney fee request is unreasonable in amount. No later than nine court days before the continued hearing date, Seneca is ordered to file a supplemental declaration and billing statements for tasks associated with conducting legal research, preparing the motion, reviewing the opposition, preparing the reply, and attending the hearing. Plaintiff may file a supplemental reply not more than three pages addressing the fees no later than five court days before the continued hearing date.
4.	MONSTER ENERGY COMPANY VS. C.H. ROBINSON WORLDWIDE, INC. 2026-01537801	MOTION FOR ORDER TO STAY PROCEEDINGS Defendant C.H. Robinson Worldwide, Inc's Motion to Stay Proceedings is GRANTED. The Court exercises its discretion and ORDERS this proceedings stayed pending the resolution of the proceedings on the same issues

		currently pending in Florida. (See <i>GSDMIA, INC., etc. v. MONSTER ENERGY COMPANY</i>, etc., et al, case no. 16-2025-CA-007624-XXXX-MA.) Plaintiff’s objections are overruled. Plaintiff’s requests for judicial notice are granted. “Granting a stay in a case where the issues in two actions are substantially identical [citations] is a matter addressed to the sound discretion of the trial court.” (<i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746.) There is currently an action pending in Florida regarding whether GSDMIA is bound to arbitration. This action seeks the same relief. Thus, the Court exercises its discretion to stay this proceeding while the Florida proceeding on the same claims is resolved. The Court vacates the CMC and sets the matter for an OSC re: Stay for 11/20/26 at 9:00 a.m., in Dept. C32.
5.	EVANS VS. DEL MAR REALTY AND INVESTMENTS 2023-01369446	1. MOTION TO QUASH SUBPOENA Plaintiff/Cross-defendant Aaron Evans’ Motion to Quash Defendant/Cross-complainant Allview Real Estate, Inc.’s (Allview) business records subpoena issued to AT&T is GRANTED in part as to request numbers 2, 6, 10, and 14 only. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) Plaintiff moves to quash the subpoena in its entirety on the grounds Allview has not yet identified the alleged trade secrets with sufficient particularity. Plaintiff also moves to quash request numbers 2, 6, 10, and 14 on the additional grounds they are overly broad and seek Plaintiff’s private information and potentially privileged communications between Plaintiff and his counsel. <u>Sufficient Particularity</u> Code of Civil Procedure section 2019.210 provides, “In any action alleging the misappropriation of a trade secret under the Uniform Trade Secrets Act . . . , before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify

the trade secret with reasonable particularity subject to any orders that may be appropriate under Section 3426.5 of the Civil Code.”

Plaintiff moves to quash the entire subpoena on the ground Allview’s SACC lacks the requisite specificity as it “broadly states that Del Mar’s alleged trade secrets effectively encompass any and all aspects of Del Mar’s business.” (Mtn. at 4:7-8.) The SACC defines “Trade Secret” as alleged to mean “1) client names and contact information, 2) the individualized terms of the clients’ respective property management contracts with Del Mar (particularly the fee rates charged to them for property management services), and 3) the clients’ individualized property management preferences and needs.” (SACC ¶ 19.)

The Court finds Allview has sufficiently identified the trade secrets at issue and decline to grant the motion on this ground.

Request Numbers 2, 6, 10, and 14

Request numbers 2, 6, 10, and 14 request the following:

Request No. 2 – All DOCUMENTS reflecting text messages to and from the telephone number (858) 736-4533 from September 29, 2023, through February 16, 2024.

Request No. 6 – All DOCUMENTS reflecting text messages to and from any telephone number associated with Aaron H. Evans, DOB 08/XX/1977, SSN 558-49-XXXX, from September 29, 2023, through February 16, 2024.

Request No. 10 – All DOCUMENTS reflecting text messages to and from the telephone number (858) 736-4533 from May 3, 2023, through September 29, 2023.

Request No. 14 – All DOCUMENTS reflecting text messages to and from any telephone number associated with Aaron H. Evans, DOB 08/XX/1977, SSN 558-49-XXXX, from May 3, 2023, through September 29, 2023.

Plaintiff moves to quash request numbers 2, 6, 10, and 14 on the additional grounds they are overly broad as they request text messages regardless of the subject matter and relevance to the action. (Mtn. at 5:22-24.) Plaintiff contends the documents requested pertain to text messages from Plaintiff’s personal cell phone. (Evans Decl., ¶ 4.)

When evaluating a privacy objection, a court must apply the following framework: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important

countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 [citations omitted]).

“The party seeking discovery must show a particularized need for the confidential information sought. The broad ‘relevancy to the subject matter’ standard is *not* enough here. The court must be convinced that the information is *directly relevant* to a cause of action or defense, i.e., that it is *essential* to determining the truth of the matters in dispute.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:320 [citations omitted, emphasis in original].)

Discovery should not be ordered “if the information sought is available from other sources or through less intrusive means.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:321, citations omitted.)

A request for every text message made for a period of over 9 months to or from Plaintiff’s personal cell phone with no limitation is overly broad. Plaintiff further contends he used his personal cell from May 2023 through the present to communicate via text message private, personal communications with his family, his friends, and multiple other individuals and entities unrelated to a business purpose as well as with counsel. (Evans Decl., ¶¶ 5, 6.) As such, Plaintiff has sufficiently demonstrated a “threatened intrusion” onto his right to privacy based on the documents requested.

In opposition, Allview states it will agree to exclude the contents of Plaintiff’s attorney-client communications with counsel after identifying the phone numbers with which those communications were made.

With respect to any other text messages, Allview contends they are relevant to both parties’ claims and that Plaintiff put the records at issue by alleging Del Mar customers “began contacting [Plaintiff] on his personal cell phone number.” (FAC ¶ 31-32.) Allview contends Plaintiff also contacted these clients to solicit business for himself.

Allview further contends there is no other way for Allview to determine whether and to what extent Plaintiff texted with Del Mar and Allview clients during the pertinent time period except via subpoena seeking such records. Allview contends Plaintiff’s proposal to limit the requests to only encompass specific client phone numbers is fundamentally unworkable as Allview does not have all phone numbers used by its clients to communicate with Plaintiff.

Allview does not dispute it has acquired the phone numbers of Del Mar's customers as part of its asset purchase agreement. (Hardeman Decl., ¶ 4.) Counsel for Allview states, however, "I have come across multiple references to Evans's telephonic communications with clients using client phone numbers previously unknown to Allview and me (which we only discovered by researching the numbers online)." (Muller Decl., ¶ 3.)

The fact that Allview may have identified client telephone numbers previously unknown to Allview does not justify the production of every text message made for a period of over 9 months to or from Plaintiff's personal cell phone. Allview has not demonstrated that this information is directly relevant to a cause of action or defense.

Accordingly, the Court GRANTS the motion to quash as to request numbers 2, 6, 10, and 14 as to the content of all text messages to and from Plaintiff and phone numbers other than those identified by Allview pursuant to a client list.

2. MOTION FOR DISCOVERY SANCTIONS

Plaintiff/Cross-defendant Aaron Evans' motion to compel Defendant/Cross-complainant Allview Real Estate Inc.'s compliance with the Court's order is GRANTED in part.

Special Interrogatory No. 3

Code of Civil Procedure section 2030.300, subdivision (e) provides, "If a party then fails to obey an order compelling further response to interrogatories, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010). (While Plaintiff cites to section 2030.290, that section refers to an order compelling answers, rather than further responses, which are at issue here.)

On 1/29/25, Plaintiff moved to compel a further response to Special Interrogatory No. 3 which asks Allview, "If YOU contend that EVANS misappropriated YOUR trade secrets, IDENTIFY all DOCUMENTS and ELECTRONICALLY STORED INFORMATION that CONSTITUTE the trade secrets." (ROA 357.)

Allview's further response stated, in part (following objections): "After a diligent search and reasonable inquiry, Responding Party is unable to produce any responsive documents. No paper documents or electronic records constitute trade secrets in and of themselves. Rather, the information contained within certain documents constitutes the trade secrets." (ROA 353.)

On 4/28/25, the Court granted the motion, stating:

Allview states in its response that there are no documents which themselves “constitute” the trade secrets. Allview asserts that Evans is seeking identification of documents which “contain” the trade secrets which is different than the documents which actually constitute the trade secrets.

In Allview’s response to Interrogatory 11, it provides a description of what it alleges are the trade secrets Evans misappropriated. For example, Allview asserts that among the trade secrets misappropriated was Evans’ knowledge of the customer’s specific preferences as reflected in the “specific terms on which Del Mar contracted with these third-party property owner clients.” Evans allegedly gained this information, in part, from looking at documents during his employment with Del Mar. As a result, in this instance, the distinction between the words “contain” and “constitute” is not a meaningful difference.

The Court ordered Allview to provide a further response to Interrogatory No. 3, “which identifies the documents which either contain or constitute the trade secrets.” (ROA 479.)

On 8/5/25, Allview served a yet further supplemental response to Special Interrogatory No. 3 stating:

There [Sic.] are four (4) discrete categories of trade secrets underlying Allview’s cross-claims against Evans: 1) the names and contact information for Del Mar’s clients poached by Evans, Mann, and/or SPS, 2) the individualized terms of these clients’ respective property management contracts with Del Mar (particularly the fee rates charged to them for property management services), 3) these clients’ individualized property management preferences and needs, and 4) the then impending asset purchase deal to be consummated between Allview and Del Mar. The first three types of trade secrets are memorialized in Del Mar’s client, tenant, and vendor contracts, client correspondence with Del Mar (including correspondence with Evans during Evans’s employment with Del Mar), internal notes relating to clients and client properties, client working files, client property files, tenant applications, property condition records, payment records, tenant ledgers, eviction lists and court records, preferred vendors, and other books and records of Del Mar relating to the poached clients. The latter type of trade secret is memorialized in the Asset Purchase Agreement as between Del Mar and Allview and internal communications between Del Mar and its employees, Evans included, relating to the same. To the extent that Requesting Party otherwise demands further details regarding the foregoing, a further response would

necessitate the preparation of a compilation, abstract, audit, or summary of or from the documents of Allview, and the burden and/or expense of preparing it would be substantially the same for both Requesting Party and Responding Party. For this reason, acting pursuant to C.C.P. § 2030.280, Responding Party Allview refers Requesting Party Evans to its May 28, 2025 document production.

(Hardeman Decl., Ex. 2 at pp. 4-5.)

The Court ordered Allview to provide a further response “which identifies the documents which either contain or constitute the trade secrets.” (ROA 479.) Allview has complied with the Court’s order in that it has provided various categories of documents containing/constituting trade secrets.

To the extent Plaintiff contends this response is insufficient as the documents were not identified with sufficient particularity as set forth in Plaintiff’s Special Interrogatories’ definition of “Identify,” Plaintiff could have raised such a challenge in a motion to compel further responses. Similarly, Plaintiff could have raised its contention Allview’s invocation of Code of Civil Procedure section 2030.230 was improper in such a motion.

The Court DENIES Plaintiff’s motion to compel compliance with respect to Special Interrogatory No. 3.

Requests for Production

Request for Production (RFP) No. 49

Code of Civil Procedure section 2031.310, subdivision (i) provides, “Except as provided in subdivision (j), if a party fails to obey an order compelling further response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Plaintiff contends Allview has not fully complied with the Court’s 4/28/25 order with respect to RFP No. 49.

With respect to RPF No. 49, the Court’s 4/28/25 order stated:

Allview states in its Further Supplemental Response that all “non-privileged” documents will be produced. (Exh. 11) Evans states that documents have not been produced (Evans Decl. ¶12) and Allview does not dispute that no documents have been produced (Opp. at 14:14-19). This suggests that documents are being withheld based on

privilege. However, there is no privilege log as to what documents are being withheld in response to these requests. Accordingly, the motion is GRANTED, in part, and Allview is ordered to provide a privilege log for the privileged documents withheld for each request.” (ROA 479.)

Accordingly, the only order the Court made with respect to RFP No. 49 was for Allview to provide a privilege log with respect to withheld documents.

Allview provided two privilege logs on 5/28/25. (Hardeman Decl, Exs. 6 and 7.) Allview contends “the only documents Allview identifies as privileged are its communications with its counsel of record in this case and its counsel’s notes and draft versions of documents in this action.” (Opp. at 12:3-6.) Allview states, there are “[n]o other materials have been withheld on privilege grounds.” (Opp. at 12:7-8.)

Plaintiff contends the privilege logs are insufficient.

The two privilege logs appear identical other than the date range, with one log referencing documents from 1/31/24 to 4/14/25 and the other from 1/31/24 to 5/28/25. Each of the privilege logs contain only two rows of entries, one listing communications received by Daniel Gutierrez of Allview from counsel and the other listing communications sent from Gutierrez to counsel. Both rows describe the documents as “Attorney-client privileged communications relating to this action, litigation strategy, and documents produced.” “In general, . . . a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted.” (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 [citations omitted].) Thus, a privilege log may be deficient where it fails to provide a description of the documents or their contents sufficient to allow a determination whether the documents are privileged. (*Id.* at p. 1129, fn. 5) This is because “[e]ven assuming all of the documents were communications with an attorney, not all communications with an attorney are privileged. Instead, the attorney-client privilege attaches only to confidential communication made in the course of or for the purposes of facilitating the attorney-client relationship.” (*Ibid.*)

Here, including all withheld documents within two broad categories does not identify who authored, sent, or received each allegedly privileged document or the document’s date. Nor is the sole description of “Attorney-client privileged communications relating to this action, litigation strategy, and documents produced” sufficient to allow a determination whether the documents are

		privileged. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP No. 49 and ORDERS Allview to produce a supplemental privilege log. <u>RFP Nos. 1, 3, 4, 6, and 7</u> With respect to RFPs Nos. 1, 3, 4, 6, and 7, the Court ordered Allview "to produce all documents which support its claim that Evans misappropriated trade secrets, including those documents identified in Allview's response to Special Interrogatory No. 6. This should include the documents which contain the information which Allview claims Evans misappropriated and upon which it bases its claim for misappropriation of trade secrets." (ROA 479.) Allview contends it served modified discovery responses to Special Interrogatories on 8/25/25, clarifying it was only relying on those internal books and records "relating to all Del Mar and/or Allview clients poached by Evans, Mann, and/or SPS" (Opp. at 10:8-11.) Allview further responses to Special Interrogatory No. 6 at the time of the Court's order referred to "[a]ll internal books and records of Del Mar Parties, including all records relating to its property management clients." Allview cannot unilaterally change the scope of the Court's order by subsequently serving a further supplemental response. Allview's further responses to Special Interrogatory No. 6 also identified "[c]orrespondence between former Del Mar property management clients and Del Mar terminating their property management agreements." Allview does not contend it has produced all documents with respect to this category or the other categories set forth in its further response to Special Interrogatory No. 6 <i>at the time of the Court's 4/28/25 order</i>. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP Nos. 1, 3, 4, 6, and 7 and ORDERS Allview's compliance with the Court's 4/28/25 Order with respect to these requests for production. The Court DENIES both parties' request for sanctions.
6.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	MOTION TO STRIKE PORTIONS OF COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint is DENIED. Defendant moves to strike portions of Plaintiff's complaint on the ground Plaintiff failed to plead facts sufficient for an award of punitive damages.

“To support punitive damages, the complaint asserting one of those causes of action must allege ultimate facts of the defendant’s oppression, fraud, or malice.” (*Spinks v. Equity Resident Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055 [citation omitted].)

Civil Code section 3294 defines “malice” as conduct “intended by the defendant to cause injury to plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) “Fraud” is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Additionally, section 3294, subdivision (b) provides: “An employer shall not be liable for damages . . . based upon acts of an employee of the employer, unless the employer . . . authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

“Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation.” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7.)

Plaintiff alleges:

- Defendants’ conduct was intended to cause injury to Plaintiff or was despicable conduct carried out by Defendants with a willful and conscious disregard of Plaintiff’s rights, or subjected him to cruel and unjust hardship in conscious disregard of his rights so as to constitute malice, oppression, or fraud. (Compl. ¶ 109.)
- Terry Lujan (a management-level employee with Defendants) regularly told Plaintiff about sexual experiences with her partner, including using sex toys and other paraphernalia during sexual intercourse and intentionally and offensively touched Plaintiff without his consent on multiple occasions. (Compl. ¶ 27.)
- David Hazel (a management-level employee with Defendants) regularly told Plaintiff about sexual experiences with his partners, repeatedly invited Plaintiff to visit a strip club while they were on-duty, which Plaintiff invariably rejected, made crude remarks about hiring sex worker,

		showed Plaintiff pornographic images and videos on his cell phone, and sent photographs of himself at a strip club to Plaintiff's personal cell phone. (Compl. ¶ 28.) These allegations sufficiently allege conduct that subjected Plaintiff to subjects to cruel and unjust hardship in conscious disregard of his rights. Defendant further contends Plaintiff does not identify the officer, director, or managing agent of the corporation who had advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice. As set forth above, Plaintiff alleges Lujan and Hazel were management-level employees with Defendants. (Compl. ¶¶ 27, 28.) “[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the <i>employee exercised substantial discretionary authority over significant aspects of a corporation's business.</i>” [Citation.] “The scope of a corporate employee's discretion and authority under our [managing agent] test is therefore a <i>question of fact</i> for decision on a case-by-case basis.” (<i>Davis v. Kiewit Pacific Co.</i> (2013) 220 Cal.App.4th 358, 366 [emphasis in original].) Plaintiff's allegations are sufficient at the pleading stage. Whether Lujan and Hazel are actually managing agents for purposes of punitive damages involves a factual determination that is inappropriate for purposes of a motion to strike. Accordingly, the Court DENIES Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint.
7.	DOE VS. IHERB, LLC 2025-01505285	MOTION TO STRIKE Defendants iHerb and Trent Kruse's Motion to Strike Plaintiff's Jane Doe Designation is CONTINUED to July 7, 2026, to be heard concurrently with Plaintiff's Motion to Proceed Pseudonymously and for Entry of a Protective Order. The Court finds it would be most efficient to address the issues raised in these motions together.
8.	ZANDI VS. CALVARY CHAPEL OF COSTA MESA 2024-01405013	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Felicia Zandi's Motion to Allow Additional Time for Defendant Jacob Harman's Deposition, joined by Defendants Calvary Chapel of Costa Mesa and Brian Brodersen, is GRANTED. Harman is ORDERED to sit for a second session of his deposition beyond the seven hours authorized without a court order in Code of

		Civil Procedure, section 2025.290(a). Plaintiff is permitted to depose Harman on matters related to the documents produced after the first session of the deposition and pursuant to the deposition notice. Plaintiff's additional examination is limited to 3 hours. Calvary Chapel and Brodersen are permitted to depose Harman on any matter, however, their examination is limited to 2 hours. Plaintiff's request for sanctions is DENIED. "Except as provided in subdivision (b), or by any court order, including a case management order, a deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (Code Civ. Proc., § 2025.290(a).) Additional time is required to fairly examine Harman. Plaintiff's counsel was unable to examine Harman regarding the 2,000 pages of documents produced after the deposition. Harman's arguments regarding counsel having the documents from a different case and choosing to examine Harman on matters he claims are less important are not persuasive. There is no authority which abrogates a party's discovery responsibilities based on discovery from a separate case. Further, without the responsive documents, Plaintiff's counsel was unable to determine the import of each topic and whether he should reserve time to question Harman on undisclosed documents. Additionally, Calvary Chapel and Brodersen were unable to ask any questions during the deposition. Thus, the Court finds additional time is warranted under Code of Civil Procedure, section 2025.290(a). The Court finds sanctions inappropriate. First, this motion is not a motion to compel answers or production of documents. Harman had already produced documents prior to Plaintiff filing her motion. Further, the Court declines to exercise its discretion to impose monetary sanctions pursuant to Section 2023.010.
9.	BEVERAGE VISIONS, LLC VS. CUA	MOTION FOR ATTORNEY FEES The Motion for Attorney Fees by Defendant in Intervention Beverage Visions, LLC against Plaintiff in Intervention Russell Geyser is GRANTED. Movant seeks attorney fees based on the Court's order granting their anti-SLAPP motion to strike the Complaint in Intervention of Russell Geyser. On 12/9/25, the Court granted movant's anti-SLAPP motion on the grounds that the alleged conduct related to settlement of a prior

		dispute was protected speech and Geyser failed to demonstrate a probability of prevailing because the litigation privilege applied to his allegations. <u>Legal Standard:</u> Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See <i>Lin v. City of Pleasanton</i> (2009) 176 Cal.App.4th 408, 425–426; <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954–955.) <u>Application:</u> Here, movant prevailed on its anti-SLAPP motion, which had a substantial practical effect – dismissal of the entire Complaint in Intervention against it. Movant seeks attorney fees of \$10,948 plus filing/service fees of \$119.40. The request is based on counsel’s hourly rates between \$540 and \$660/hour, which the Court finds is reasonable for purposes of the subject motions. Movant’s attorney fees request reflects a reasonable amount of time spent on the anti-SLAPP motion and the present motion (1.5 hours). The motion is unopposed. The motion is granted in the amount of \$11,067.40.
10.	SCHWARTZ VS. BRUNSWICK CORPORATION 2023-01331323	MOTION FOR ATTORNEY FEES Plaintiff Martin Schwartz’s motion for an award of attorneys’ fees and costs is GRANTED as modified. The court declines to rule on the Defendant’s evidentiary objections to evidence submitted by Plaintiff and Plaintiff’s evidentiary objections to evidence submitted by Defendant on the grounds they are unnecessary to the disposition of the Motion. <u>Entitlement to Attorneys’ Fees:</u> Plaintiff moves for attorneys’ fees pursuant to Civil Code section 1794, subdivision (d) which states: “If the buyer prevails in an action

under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

On April 25, 2025, the case settled “for \$615,000, and a fee motion.” (Davis Decl., ¶ 15.) The parties do not dispute that Plaintiff is the prevailing party entitled to attorneys’ fees.

Amount of Attorneys’ Fees:

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (*Ibid.* (citation omitted).)

“As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ [Citation.] In the case of contingency fee arrangements, ‘a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys.’ [Citation.] [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ [Citation.] Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. [Citation.] The prevailing party and fee applicant bears ‘the burden of showing that the fees incurred were ... “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” ’ [Citations.]” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 (*Mikhaeilpoor*).)

[T]rial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) “Trial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not.” (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010). “Counsel may not submit a plethora of noncompensable, vague, or block-billed attorney time entries and expect particularized, individual deletions as the only consequence.” (*Guillory v. Hill*, (2019) 36 Cal.App.5th

802, 815 (citing *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1329.)

Plaintiff seeks an award of attorneys' fees under the lodestar method in the amount of \$430,038.75 for: (1) 400.4 hours billed by Jim Whitworth at \$850 an hour; (2) 82.6 hours billed by Timothy Fatone at \$800 an hour; (3) 68.1 hours billed by paralegal Christy Holliday at \$225 an hour; (4) 6.0 hours billed by Fatone for paralegal work at \$80 an hour; (5) costs totaling \$941.50; and (6) an additional \$6,860 in estimated fees and costs associated with preparing a reply to this opposition.

Defendants challenge both the hourly rate charged, and the total number of billable hours claimed by Plaintiff's attorneys. The hourly rates of Whitworth and Fatone are excessive and reduced to \$500. The hourly rate for Holliday is also excessive and reduced to \$200.

Despite the court continuing the hearing to allow Plaintiff to submit billing records that provide detail as to what substantive work was performed, Whitworth's billing records still contain vague entries. The court reduces the hours requested for Whitworth by 78.1 hours because the entries for these hours requested are so vague that the court cannot make a determination as to whether the time expended was reasonable.

Further, on 4-15-25, Whitworth billed 24.4 hours in one day. (Whitworth Decl. [ROA 393], Lines 59, 65, and 66). Since there are only 24 hours in a day, this is clearly an example of bill padding. The billing records also show excessive billing for trial preparation on other days. For example, Whitworth billed 12.0 hours on 4/6/25 (*Id.*, line 93); 6.0 hours 4/7/25 (*Id.*, line 92); 4.0 hours on 4/9/25 (*Id.*, line 80); 12.0 hours billed on 4/16/25 (Ex. 18, line 64); 12.0 hours billed on 4/17/25 (*Id.*, line 63); 10.0 hours billed on 4/22/25 (*Id.*, line 54); 19.0 hours billed on 4/23/25 (*Id.*, line 53). The court reduces the hours billed by 52.5 hours.

Further, there is continued block billing such that the court cannot determine which tasks are compensable. Specifically, the court reduces the hours for block billing by 38 hours. (Whitworth Decl. [ROA 393], Lines 45, 52, 58, 60, 83, 95, 96, 106, 160, 216, 298, 301, 320).

Additionally, Whitworth billed 8.8 hours for clerical or administrative work. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.)

Based on the foregoing, Whitworth's hours are reduced to 223 and fees awarded in the amount of \$111,500 (\$500 x 223 hours).

Fatone's billing records also continue to contain some vague entries. The court reduces Fatone's hours by 1.1 for vague entries and 1.2 hours for administrative work performed by Fatone and billed at his regular rate and not his paralegal rate. Therefore, Fatone's hours are reduced to 65.8 and fees awarded in the amount of \$32,900 (\$500 x 65.8 hours).

Further, Holliday's billing records contain entries for 34.6 hours that are so vague that the court cannot determine whether the hours expended were reasonable. Therefore, Holliday's hours are reduced to 33.5 fees awarded in the amount of \$6,700 (\$200 x 33.5 hours).

Lastly, Plaintiff seeks an additional \$6,860 in estimated fees and costs associated with preparing a reply to the opposition. The amount requested is excessive and reduced to \$1,500.

Accordingly, the court awards fees in the amount of \$152,600.

Multiplier to the Lodestar:

"The Supreme Court has 'set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award." ' " (*Mikhaeilpoor, supra*, 48 Cal.App.5th at 248.) "The trial court is neither foreclosed from, nor required to, award a multiplier." (*Mikhaeilpoor*, at p. 247.)

A multiplier to the lodestar is not warranted. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the availability of statutory fees for Song-Beverly cases significantly reduced the risk associated with working on contingency. Therefore, the request for a multiplier is DENIED.

Costs:

Plaintiff seeks \$941.50 in costs which are reasonable. (Supp. Fatone Decl., Ex. A.) The court awards \$941.50 in costs.

Plaintiff to give notice.

**11. CARLEY VS. CEBRON
GROUP, LLC
2024-01405281**

MOTION FOR ATTORNEY FEES

Plaintiff Anne Carley’s Motion for Attorney Fees is GRANTED in the amount of \$43,847.36.

Plaintiff prevailed at bench trial in December 2025 after Defendants failed to appear.

Legal Standard:

A party seeking a fee award has the burden of establishing entitlement to an award, and of documenting the appropriate hours spent, and the hourly rates. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v Nunez* (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.)

In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Id.*)

Application:

Plaintiff’s counsel declares that this case was especially risky because Defendants previously entered a settlement agreement, which was breached, and she believes it will be difficult to collect on Plaintiff’s judgment. Counsel has been practicing law since 1997, specializing in employment law since 2011. Her actual hourly rate is \$950/hour and that of her paralegal is \$150/hour.

Bronshiteyn v. Department of Consumer Affairs (2025) 114 Cal.App.5th 537, 546–547, holds, “Trial judges see an endless procession of lawyers and lawyer fee motions. After years of experience, trial judges can develop an empirical sense of the prevailing market conditions and the range of individual performances. Some talented and hardworking lawyers can do brilliant work from the very outset of their careers. Other lawyers are vastly experienced but unremarkable. Some attorneys are miserable. The seasoned trial judge is the eyewitness to this parade.” In *Bronshiteyn*, the trial court’s award of fees based on counsel’s hourly rates between \$425-\$1,200, which were at the “upper end of

		Los Angeles market rates,” was upheld based on its finding that, “[t]he quality of lawyering was high; far beyond what the court would expect of an average lawyer—even with the years of experience the lawyers here exhibited.” (<i>Id.</i> at 547.) Here, the Court finds Plaintiff’s counsel exercised skill and diligence in prosecuting this case through trial. Defendants did not appear or oppose the present motion. Counsel is highly experienced in employment law, worked on this case efficiently, and reasonably delegated many tasks to her paralegal. Therefore, the Court will accept counsel’s hourly rate of \$950 and paralegal rate of \$150. Counsel has submitted detailed billing records demonstrating she spent 27.75 hours and her paralegal spent 10.5 hours litigating this matter to trial, plus an additional 6.5 and 3 hours respectively on the present motion, for total incurred fees of \$34,562.00. Counsel also seeks a 1.5x multiplier based on the contingent risk and public interest in this case. Based on the factors set out in <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132, including the contingent risk and public policy served by bringing this lawsuit to enforce unpaid wages, the Court finds a 1.25x multiplier is reasonable. Therefore, the motion is granted in the total amount of \$43,847.36. (\$34,562 x 1.25 multiplier = \$43,202.50, plus costs of \$644.86.)
12.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION FOR SUMMARY JUDGMENT Defendant General Motors LLC moves for summary judgment as to plaintiff Derick Cao’s Complaint is DENIED. “[S]ummary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Civil Proc. Code, § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 (<i>Aguilar</i>).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Civil Proc. Code § 437c, subd. (p)(2); <i>Aguilar, supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 855, italics in original.) If the moving party meets its burden, the burden then shifts to the party opposing

summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855.)

Defendant moves for summary judgment as to Plaintiff’s first cause of action for Violation of Civil Code §1793.2, subdivision (d), second cause of action for Violation of Civil Code §1793.2, subdivision (b), third cause of action for Violation of Civil Code §1793.2(a)(3), and fourth cause of action for Breach of Express Written Warranty on the grounds the subject vehicle was not a new motor vehicle when purchased by Plaintiff, and no new warranty was issued with that sale.

Defendant has submitted evidence to show the subject vehicle, a model year 2021 Cadillac Escalade, was leased on December 6, 2021, by Plaintiff from Dublin Chevrolet Cadillac (“Dublin”). (Defendant’s Undisputed Material Fact (“UMF”) 1-2.) Defendant contends after the original lease of the subject vehicle had ended, Plaintiff purchased the vehicle from Dublin. (UMF 4.) However, Defendant has failed to submit competent evidence to substantiate Plaintiff purchased the subject vehicle. Although Defendant cites to the Declaration of Gregory Gruszecki which it contends attaches the Retail Installment Sales Contract (“RISC”) as Exhibit B, Gruszecki’s declaration neither references nor attaches the RISC. (ROA 140.) Therefore, Defendant’s moving papers fail to show Plaintiff exercised his option to purchase the subject vehicle and that the subject vehicle was not a new motor vehicle.

In support of its Reply, Defendant has submitted a Supplemental Declaration of Gruszecki which attaches the RISC. (Supp. Gruszecki Decl., ¶ 6, Ex. B.) Gruszecki is Defendant’s attorney and has failed to authenticate the RISC. Specifically, Defendant has failed to show he has any personal knowledge of the RISC. Even if the RISC was properly authenticated, section 437c, subdivision (b)(4) provides the “reply shall not include any new evidentiary matter.” (Code Civ. Proc., § 437c, subd. (b)(4).) Therefore, the Court cannot consider the RISC. As such, Defendant has failed to meet its initial burden on the Motion.

Since Defendant moves for summary judgment only and the court finds Defendant is not entitled to judgment on the first, second, third and fourth causes of action, the court does not address the fifth cause of action.

Potential AI Hallucinations in Motion:

“Simply stated, no brief, pleading, motion, or any other paper filed in any court should contain *any* citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (*Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 431 (*Noland*).) “[A]ttorneys must check every citation to make sure the case exists and the citations are correct. [Citation.] Attorneys should

		not cite cases for legal propositions different from those contained in the cases cited. [Citation.] And attorneys cannot delegate this responsibility to any form of technology; this is the responsibility of a competent attorney. [Citation.] ‘ “Honesty in dealing with the courts is of paramount importance, and misleading a judge is, regardless of motives, a serious offense.” ’ [Citation.]” (<i>People v. Alvarez</i> (2025) 114 Cal.App.5th 1115, 1119.) [R]elying on fabricated legal authority is sanctionable.” (<i>Noland, supra</i>, 114 Cal.App.5th at p. 445.) Here, it appears Defendant may have used AI for some portions of the Motion and did not check the work. Although most of the cases to which the quotes are attributed exist, the quotes do not. Further, some of the cases Defendant cites do not support the propositions for which they are cited, and one of the cited cases does not exist at all. For example, Defendant cites to <i>Dagher v. Ford Motor Co.</i> (2015) 238 Cal.App.4th 905, 917 (<i>Dagher</i>) stating that “the Court confirmed the Act’s refund/replacement remedies for breach of express warranty ‘extend only to new motor vehicles.’” (Motion, 8:8-11.) Although the case exists, the language quoted by Defendant is not contained in the <i>Dagher</i> opinion. Similarly, Defendant cites to <i>Nunez v. FCA US LLC</i> (2021) 61 Cal.App.5th 385 (<i>Nunez</i>) stating “the Court noted that Song-Beverly ‘maintains a distinction between sales of new and used goods.’” (Motion, 8:10-13.) Again, although the case exists, the language quoted by Defendant is also not contained in the <i>Nunez</i> opinion. Defendant also cites to <i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337 (<i>Kiluk</i>) stating that “the Court held that a manufacturer’s duty to repurchase or replace a vehicle ‘does not extend to used vehicles that are purchased after a prior lease.’” (Motion, 8:6-9.) The Court’s opinion in <i>Kiluk</i> does not contain the quoted language and the opinion in fact has nothing to do with leased vehicles as the vehicle in that case was not a lease buyout but a certified preowned vehicle. Lastly, Defendant in the moving papers cites <i>O’Neil v. FCA US LLC</i> (2021) 61 Cal.App.5th 421, 431 which Defendant admits in its Reply does not exist and withdraws the citation. (Reply, 4:24-26.) Plaintiffs’ counsel is ordered to appear and discuss the inaccuracies and discrepancies with the court at the hearing. If the court decides to issue an order to show cause, a separate hearing will be set. Moving Defendant to give notice.
13.	YOUNG VS. ADAMS 2022-01281968	MOTION FOR AN ORDER REQUIRING SECURITY Specially Appearing Defendants Collect Co, Ali Ammar aka John Adams, and Daniel Wall’s (erroneously sued as David Wall) Motion for an Order Requiring Security in the amount of \$150,000.00

pursuant to Code Civil Procedure section 391.1, subdivision (a) is GRANTED.

Defendants' Request for Judicial Notice

Defendants request judicial notice of the following documents:

- Exhibit A - The order of the Orange County Superior Court issued on October 3, 2024 in *Young v. Byars, et al.* (Case No. 30-2017-00924659-CU-FR-CJC).
- Exhibit B - The order of the United States District Court for the Central District of California issued on May 11, 2026 in the case of *Young v. Griffin, et al.* (Case No. 8:25-cv 00762-MRA-ADS).

A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the *existence* of each document a court file, [it] can only take judicial notice of the *truth* of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Thacker* (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS Defendants’ request for judicial notice.

Legal Standard

Code of Civil Procedure section 391.1 provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

“When considering a motion to declare a litigant vexatious under section 391.1, the trial court performs an evaluative function. The court must weigh the evidence to decide both whether the party is vexatious based on the statutory criteria and whether he or she has a reasonable probability of prevailing.” (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 635 [citation omitted].) “Accordingly, the court does not assume the truth of a litigant’s factual allegations and it may receive and weigh evidence before deciding whether the litigant has a reasonable chance of prevailing. (*Ibid.* [citation omitted].) The burden on the motion is on the moving party to show the plaintiff

has no reasonable likelihood of prevailing in the action. (*Id.* at p. 640 [citation omitted].)

Whether Plaintiffs are Vexatious Litigants

Plaintiffs were deemed vexatious litigants on 6/26/23 in the *Young v. Byars* matter (Case No. 2017-00924659), which was affirmed by the Court of Appeal. (Ammar Decl., ¶ 19, Exs. I and J.)

Thus, the Court finds Plaintiffs have been deemed vexatious litigants.

Whether Plaintiffs Have a Reasonable Probability of Prevailing

Plaintiffs bring 11 causes of action in their amended complaint. Underlying each of the causes of action are Plaintiffs' contentions Defendants fraudulently obtained Plaintiffs' consent to assign their judgments to Collect Co.

This issue has been addressed repeatedly, including in this action and the *Byars* action, and found to lack merit each time.

Primarily, Plaintiffs contend they never executed any Client Agreement with Collect Co and the Adobe Sign records and metadata do not reflect Plaintiffs' execution of a "Client Agreement." (J. Young Decl. ¶¶ 3-7, 17-18.)

Plaintiffs filed an appeal of various orders in the *Byars* matter. In affirming those orders, the Court of Appeal discussed the background of that case in which it stated Plaintiffs "have become their own worst enemy" and have engaged in "intransigent conduct." (Ammar Decl., Ex. J at p. 2.)

The Court noted Plaintiff filed an ex parte application to "Rescind (Vacate) 'Acknowledgment of Assignment of Judgment' Filed by [Collect Co.] and to Terminate any Actions by [Collect Co.]," which was denied. The Court stated, "In their joint sworn declaration filed in support of the ex parte application, plaintiffs acknowledged signing and notarizing the Assignment, and they attached email correspondence between them and Collect Co. showing they had signed the Agreement electronically. Although plaintiffs asserted they could not remember signing the Agreement, they stated: "[i]f we did send our electronic signatures, it must have been done based on the trust to [the attorney with whom they had met] and the signatures must have been sent out without understanding or knowledge of the content. In other words, the 'Judgment Agreement' were [sic] electronically signed without any discussion and explanation by an attorney to us." (Ammar Decl., Ex. J at p. 5.)

The Court further stated:

Plaintiffs did not take no for an answer. Over the next several months, plaintiffs filed three more ex parte applications and two combined noticed motions, all seeking to undo the Assignment. All of the motions and applications were denied.”

By way of example, on October 12, 2021, plaintiffs filed a “Motion for Order to Enforce ‘Reassignment’; or Alternatively, to Strike Acknowledgment of Assignment of Judgment.” In that motion, plaintiffs alleged Collect Co. sent the Agreement to them as an attachment to an email and they electronically signed it without noticing or reading the attachment. Plaintiffs also asserted they signed and notarized the Assignment without reading its contents based on the trust they had for their attorney. They contended they did not know about the assignment of the judgment until August 15, 2021, when they asked their attorney to stop collection efforts against McIntyre. On November 10, 2021, the trial court held a hearing and denied plaintiffs’ motion. The court explained: “the Court fully considered the evidence presented on this issue and found on the merits that the assignment was valid and binding.”

(Ammar Decl., Ex. J at p. 6.)

The Court stated even after Plaintiffs were deemed vexatious litigants, “plaintiffs continued to file numerous additional motions and other papers, all in an attempt to vacate the court’s prior rulings, relitigate the validity of the Assignment, and stop enforcement by Collect Co. of its fee award. All of those efforts also were unsuccessful.” (Ammar Decl, Ex. J at p. 7.)

Plaintiffs filed the instant matter in 2022 and have made the same attempts to challenge prior court rulings, relitigate the validity of the Assignment, and stop enforcement by Collect Co of its fee awards.

On 5/22/23, the Court denied Plaintiffs’ motion for a preliminary injunction. (ROA 199.) In denying the motion, the Court stated:

Plaintiffs also concede they signed documents without reading them. Plaintiffs do not declare that they were prevented from reading or reviewing the documents they signed. Additionally, while Mrs. Young declares that “my husband and I have never signed any Client Agreement” and that “Ali Ammar/ Collect Co pasted our signatures on the Client Agreement,” these statements are contrary to their admissions. (¶14 of Young Declaration.) Plaintiffs repeatedly concede executing the document attached and referred to by Defendant as a “Judgment Agreement.” (¶9 and ¶13 of Jennifer Young Declaration.)

Additionally, despite Defendants’ alleged mis-labeling of the documents in email communications, a review of the documents themselves demonstrates that their content is clear: The document which Plaintiff Young declares Defendant called a “Judgment Agreement” and which is attached as Exhibit Three to the Jennifer Young Declaration is in fact clearly labelled as a “Client Agreement” between William and Jennifer Young (“Client”), on the one hand, and Collect Co. (“COCO”), on the other. (¶14 of Jennifer Young Declaration and Exhibit Three thereto.) Moreover, the document indicates that “Client shall irrevocably assign all the judgments listed on the below Schedule A to COCO within 7 days after the date of this Agreement.” (Id.) The Agreement thereafter clearly identifies five separate judgments. (Id.) Similarly, the “Acknowledgment of Assignment of Judgment” which Plaintiffs declare Defendant referred to as a “Court Form,” is likewise clear. (¶17 of Jennifer Young Declaration and Exhibit Five thereto.) This document states: “For a valuable consideration, receipt of which is hereby acknowledged, William Young and Jennifer Young does hereby irrevocably grant and assign to Collect Co all right, title, and interest in the \$91,217.00 judgment entered in the above entitled case on January 22, 2018.” (Id.) Plaintiffs concede having signed and notarized this document. (¶18 of Young Declaration.)

(ROA 199 at p. 5.)

The Court also rejected Plaintiffs’ argument that Ammar fraudulently concealed his identity or misrepresented his identity in email communications. (ROA 199 at p. 3.)

Plaintiffs again raised this issue in a second motion for preliminary injunction based on purported new documentary evidence. The motion was denied on 4/27/26 as the evidence was neither new nor was it “previously unavailable” to the Court in considering Plaintiffs’ prior motions for preliminary injunction. The motion was also denied on ground the Court could not enjoin enforcement or collection actions permitted by orders issued by another department of this court. (ROA 450.)

In opposing this motion, Plaintiffs make the same contentions, i.e., that Plaintiffs did not execute a Client Agreement. Again, this contention has been rejected numerous time both by the *Byars* court and this Court.

In support of their argument, Plaintiffs contend, “A criminal investigator documented that the signatures attributed to Plaintiffs were cut-and-pasted images, not electronically captured signatures. Defendants’ own exhibits are consistent with that finding.” (Opp. at 6:10-14; J. Young Decl., ¶ 19.)

The report to which Plaintiffs cite states, however:

Further, based on my review of the signed Adobe Sign document and the details from that document that I was able to view, it was evident that the document was sent to William and Zhanfen's actual email address for review and e-signature. The activity listed in Adobe Sign showed they e-signed the document. This contradicted Zhanfen's claim that she and William's signatures were forged. The conclusion of this investigation is that Zhanfen's and William's signatures, which were e-signed were legitimate and the crime of forgery is unfounded, there are no further steps to be taken.

(Ammar Decl., Ex. G at p. 6 of 6.)

Plaintiffs also contend Defendants concealed the fact "John Adams" was a fictitious name used by Ammar and Plaintiff were not informed "of the true identity of the individual making settlement demands." (Opp. at 6:24-28.) Plaintiffs do not demonstrate, however, Defendants had a duty to disclose the fact to the plaintiff (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248) or how Ammar's use of "John Adams" resulted in Defendants' fraudulently obtaining the Client Agreement.

Plaintiff further contend Defendants' standing "has never been adjudicated on the merits in this action," and "Collect Co, despite not being a party, repeatedly sought and obtained relief ordinarily available only to parties, including enforcement relief and vexatious litigant determinations, without any adjudication conferring standing or authorizing alteration of case-party designations." (Opp. at 7:4-8.)

Collect Co's standing was addressed by the Court of Appeal in connection with the *Byars* matter. The Court stated Plaintiffs' contention "Collect Co. lacked standing to file the vexatious litigant motion is just wrong. . . . Collect Co., *became a party to the action*—as plaintiffs' assignee of record who stepped into plaintiffs' shoes—when it filed the Assignment in the action. . . . The court repeatedly rejected plaintiffs' multiple challenges to the validity of the Agreement and Assignment; plaintiffs' persistent refusal to accept those rulings did not deprive Collect Co. of standing in the action to seek relief from the court. (Ammar Decl., Ex. J at pp. 13-14.) Plaintiffs provide no authority to the contrary.

Finally, while Plaintiffs contend security is not appropriate as the matter is actively being litigated, "[t]he grant of a section 391.1 motion does not preclude a trial; it merely requires a plaintiff to post security." (*Moran v. Murtaugh Miller Meyer & Nelson, LLP* (2007) 40 Cal.4th 780, 786.)

Given the above, the Court finds Defendants have met their burden of demonstrating Plaintiffs have no reasonable probability of prevailing in the action.

Amount Sought

Defendants seek \$150,000.00 in security.

Code of Civil Procedure section 391.3, subdivision (a) provides, “Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.”

Section 391 defines security as “an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party’s reasonable expenses, including attorney’s fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant.”

Defendants contend Collect Co has incurred approximately \$25,000.00 in legal fees and costs in this action. (Ammar Decl., ¶ 27.) Defendants further contend Collect Co incurred approximately \$275,000.00 and \$50,000.00 in two other related actions (Ammar Decl., ¶¶ 22-26.)

Considering the history of this litigation and Plaintiffs’ conduct, including Plaintiffs’ multiple filings to obtain the same relief while making the same rejected contentions, the Court finds a reduced amount of \$100,000.00 to be reasonable.

Likely Use of Generative Artificial Intelligence

This is now the third time the Court has addressed Plaintiffs’ apparent use of artificial intelligence (AI) in their filings with the Court.

On 12/8/25, the Court noted “pinpoint cites referred to in Plaintiff’s declaration do not exist as quoted and does not apply” and stated “[p]hantom citations will not be considered.” (ROA 412.)

On 4/27/26, the Court again noted Plaintiffs’ opposition included quotations that are not found in the cases cited. The Court admonished Plaintiffs to carefully read and verify citations used in any future filings with the Court and that the failure to do so may result in the imposition of monetary sanctions and other appropriate corrective action. (ROA 453.)

	The Court now notes for the third time Plaintiffs have included quotations or propositions that are not found in the cases cited. For example, while Plaintiffs cite <i>Alvarez v. Wells Fargo Bank</i> (2013) 216 Cal.App.4th 1191, 1203-1204 at page 9, line 27 of the opposition, no such case exists, nor does a different unpublished case with the same name address any of the issues relevant to this motion. Similarly, Plaintiffs cite to <i>Garcia v. Lacey</i> (2014) 231 Cal.App.4th 402, 407-408 for various propositions that are unsupported by this case. The same issue applies to Plaintiffs' citation of <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal.App.4th 775, 779-780. As such, Plaintiffs appear to have violate the Court's prior order to carefully read and verify citations used in any future filings with the Court. Plaintiffs are ordered to appear and discuss the inaccuracies and discrepancies with the court at the hearing. If the court decides to issue an order to show cause, a separate hearing will be set. The Court GRANTS Defendants' Motion for an Order Requiring Security and ORDERS Plaintiffs to post security in the amount of \$100,000.00 within thirty (30) days.
--	--